

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 24, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JAY SHERWOOD vs. JAMES WHITE dba JAMES' BOAT AND FIBERGLASS
REPAIR
Case No. CL25-06219**

Motion for Order Directing a Levying Officer to Enter a Private Place and Seize Property Pursuant to C.C.P. §699.030

TENTATIVE RULING

C.C.P. §699.030 authorizes the court, on ex parte application or noticed motion if the court so orders, to issue an order directing a levying officer to seize personal property in a private place, as long as the application or order describes the personal property and location with particularity.

In general, the levying officer may take possession of personal property if it is in the judgment debtor's custody, or the custody of the judgment debtor's agent. C.C.P. §714.020(a).

Although a separate action must be filed against a third party to levy against personal property in the third party's possession, such as through a bona fide lease, a transfer of a business from father to son would not create rights for the son superior to those of existing judgment creditors such as Plaintiff.

Still, the court has concerns about the Plaintiff's intended actions once the subject personal property is seized, such as what commercially reasonable sale or sales are intended to occur for the property; and what recourse other creditors, including but not

limited to any creditors with security interests in any of the subject personal property, might have.

For these reasons, parties are to appear for hearing as scheduled.

JAIME ANDUJO vs. GENERAL MOTORS, LLC
Case No. CU23-00155

Plaintiff's Motion for Attorneys' Fees

TENTATIVE RULING

Plaintiff JAIME ANDUJO moves for an award of attorneys' fees and costs following settlement of this action brought under the Song-Beverly Consumer Warranty Act (the "Act" or "lemon law") against Defendant GENERAL MOTORS, LLC.

Timeliness of Fee Motion. A prevailing buyer under the lemon law shall be allowed to recover attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the prosecution of his action. (Civ. Code, § 1794, subd. (d).) California Rules of Court, Rule 3.1702 requires a motion for attorneys' fees to be filed and served within the time for filing a notice of appeal, which is the sooner of 180 days from entry of judgment or 60 days from service of notice of entry of judgment. If a case ends in a dismissal then the 180-day deadline controls and begins to run from after entry of the order of dismissal. (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781.)

This case was dismissed on February 3, 2026. Plaintiffs' motion, filed and served by February 23, 2026, is timely.

Analysis of Fee Award. When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*).) These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the circumstances the court must take this into account and award a lesser amount of fees. (*Ibid.*) The prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary, and reasonable in amount. (*Ibid.*) A reasonable hourly rate is one that fits with prevailing rates for like work in the same area. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) This "lodestar" method of fee award calculation vests discretion in the trial court to decide which hours are reasonably spent on litigation and what hourly rates should be used. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) This is because a trial judge is the best judge of the value of professional services rendered in the trial court. (*Goglin v. BMW of North*

America, LLC (2016) 4 Cal.App.5th 462, 470.) The court may also apply a multiplier to increase or decrease the initial “hours times rate” lodestar figure depending on the novelty or difficulty of questions the case presented, the skill displayed in presenting the case, the extent to which the case precluded other employment for the attorneys, and the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) However, the trial court may not tie the fee award to the amount of the plaintiff’s recovery in an action under the Act. (*Hanna* at p. 510.)

A prevailing buyer may also recover his costs. (Civ. Code, § 1794, subd. (d).)

Defendant GM has not contested the hourly billing rates.

The Court finds that the time spent on the following tasks are unreasonable and warrant striking. The Court finds that the tasks at issue are not new or complex.

1. Prepared Plaintiff’s Responses to GM’s Discovery Requests – July 10, 11, 2023: The Court strikes 1.4 hours at \$525 per hour.
2. Motion to Compel Deposition – August 24, 25; October 26; November 1, 7, 8, 2023. The Court strikes 6 hours at \$525 per hour.
3. Motions to Compel Further Responses to FROGS, RFPs and SROGs – August 25, 28, 2023; September 22, 26, 2023; November 27, 28, 2023, December 4, 5, 2023. The Court strikes 7.6 hours at \$525 per hour.
4. Motion to Exclude Expert and Ex Parte Application in Connection Therewith – March 18, 24, 26, 2025: The Court strikes 4.7 hours at \$525 per hour.
5. Drafting Trial Documents – March 28, April 1, 2025; August 21, 2025: The Court strikes 3.4 hours at \$525 per hour.
6. Attorney’s Fee motion and anticipated time: The Court strikes 12.6 hours at \$525 per hour.

In total, the Court strikes 35.7 hours at \$525 per hour for a reduction of \$18,742.50.

The court finds Plaintiff’s claimed costs reasonable, with one exception: Plaintiff claims \$550 for a court reporter for an unnamed purpose.

The court finds that this was a straightforward and common action under the Act that does not warrant application of a multiplier.

Conclusion. Plaintiff’s motion is granted as follows:

Attorneys fees in the amount of \$39,345.50.

Plaintiff is awarded \$4,508.46 in costs.

AMMAAR MOTORS, INC. vs. ZULFIGAR ALI SHIRAZE; ET AL.
Case No. CU23-03284

Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR to address continuing the motion to a date after the two motions to intervene, currently scheduled for September 29, 2026, are heard.

As explained in *Singer Co. v. Superior Court* (1986) 179 Cal.App.3d 875:

“Failure to bring into the good faith settlement determination any likely defendant as a necessary party will have the usual effect -- the judgment cannot bind the absent party. (See [Kraus v. Willow Park Public Golf Course](#) (1977) 73 Cal.App.3d 354, 368 [140 Cal.Rptr. 744].)” *Id.* at 892.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant's Motion for Sanctions for Spoilation of Evidence

TENTATIVE RULING

On the Court's own motion, the hearing on Defendant's Motion for Sanctions for Spoilation of Evidence is continued to July 31, 2026 at 9:00 a.m. in Department Seven.

AGUSTIN AYALA REYNOSO vs. MARIE ALICIA ELLIS
Case No. CU25-01144

Defendant's Motion to Vacate Dismissal

TENTATIVE RULING

Defendant MARIE ALICIA ELLIS moves to vacate the dismissal of this case entered November 20, 2025 pursuant to Code of Civil Procedure section 473. The dismissal followed settlement of Plaintiff AGUSTIN AYALA REYNOSO's claims against Defendant related to an automobile collision on May 3, 2024 at Mare Island Way and Harbor Way in Vallejo. Defendant asserts that, due to excusable mistake or neglect, her counsel retained for purposes of asserting her own claims for injury against Plaintiff related to

that incident did not understand that Plaintiff had filed this action and so did not file a cross-complaint before Defendant's other counsel, retained for purposes of defending against Plaintiff's claims, negotiated and entered the settlement.

Code of Civil Procedure section 473 allows a court to relieve a party or his legal representative from a judgment, dismissal, order, or other proceeding taken against him through his mistake, inadvertence, surprise, or excusable neglect. Though the moving party bears the burden of showing that its mistake or neglect was excusable, any doubt as to that showing must be resolved in the moving party's favor to promote legislative policy favoring trial on the merits. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.) These legislative goals mean that a court's discretion to deny a section 473 motion is limited to situations where it is clear that the moving party's mistake or neglect was inexcusable. (*Id.* at 1420.) In the context of a section 473 motion, the absence of prejudice to the opposing party is something to consider rather than a requirement before granting relief. (*Ibid.*)

In *Huens v. Tatum* (1997) 52 Cal.App.4th 259 (*Huens*) the plaintiff sued two defendants over injuries sustained in an automobile collision. The plaintiff received a settlement offer for the larger of the two defendants' insurance policy limits and the plaintiff accepted; however, it turned out that the lesser of the two policies was also available as supplemental coverage. (*Id.* at pp. 261-262.) The plaintiff moved to vacate the dismissal of the case against the lesser defendant he had entered pursuant to the settlement agreement, citing Code of Civil Procedure section 473. (*Id.* at p. 262.) The motion was properly denied. (*Ibid.*) Section 473 provides for mandatory relief from a dismissal or default entered against a party due to that party's attorney's mistake, inadvertence, surprise, or neglect; it was under this mandatory relief provision that the plaintiff sought to vacate the dismissal against the lesser defendant. (*Ibid.*) This mandatory relief provision was not intended to apply to voluntary dismissals. (*Id.* at p. 264.) "The purpose of the statute was to alleviate the hardship on parties who *lose their day in court* due solely to an inexcusable failure to act on the part of their attorneys." (*Ibid.* [italics in original].) Thus, it is not appropriate to use section 473's mandatory relief provisions to vacate a voluntary dismissal entered pursuant to settlement. (*Id.* at p. 265.) Given that there was "no serious dispute" that counsel's mistake in ascertaining policy limits was inexcusable, either, there was also no basis in that case to use the discretionary relief provisions of section 473 to vacate the dismissal. (*Ibid.*)

As suggested by that final statement from *Huens*, it cannot be said that a dismissal subsequent to a settlement can never be vacated via section 473. In *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249 (*Zamora*) the plaintiff sued the defendant for breach of contract relating to payment under a construction contract. The defendant cross-complained and when the plaintiff's attorney sent the defendant a settlement offer that offered to enter judgment against the plaintiff the defendant signed quickly. (*Id.* at p. 252.) The plaintiff's counsel quickly realized that there was an error in the offer: it had been meant to say that the judgment would be in the plaintiff's favor, not taken against him. (*Ibid.*) Counsel thus moved to set aside the judgment via the discretionary relief provisions of section 473. (*Ibid.*) The trial court's grant of relief was

correct. (*Ibid.*) Section 473 allows a court to discretionarily set aside a judgment taken against a party as a result of his attorney's mistake, inadvertence, surprise, or excusable neglect. (*Id.* at p. 254.) This discretionary relief is not limited to involuntary dismissals. (*Id.* at pp. 254-255.) So long as a party's attorney can demonstrate that his error was excusable, and no prejudice to the other party will result, a party may obtain relief from even a voluntary dismissal. (*Id.* at p. 258.)

Relief is appropriate for Defendant here. Her counsel declares that his office was retained in September 2024 to represent Defendant in the context of her personal injury claims against Plaintiff relating to the same automobile collision as that of Plaintiff's complaint here. (Declaration of Brian Larsen ("Larsen Dec.") in Support of Motion at ¶¶ 3-5.) His office failed to internally communicate the information from Defendant that this case by Plaintiff existed, leading them to miss filing her cross-complaint before the matter settled. (*Id.* at ¶¶ 6-7; Reply Declaration of Brian Larsen ("Larsen Reply") at ¶¶ 5-6.) The matter settled without present counsel's involvement because Defendant was represented by insurance counsel in the context of her defense against Plaintiff's complaint here; Defendant's insurance counsel was not available to Defendant to assert any cross-claims. (Larsen Reply at ¶ 4.)

Defendant brought this motion within six months of the dismissal to be vacated, the dismissal having been entered on November 20, 2025 and this motion having been filed on May 8, 2026. Counsel's declaration shows how the failure to file a cross-complaint was the result of excusable neglect. The failure of office staff to route information to attorneys for review is the sort of clerical error found excusable in cases such as *Bergloff v. Reynolds* (1960) 181 Cal.App.2d 349, wherein an associate gave incorrect information at a hearing due to misunderstanding a lead attorney's instructions, and *Alderman v. Jacobs* (1954) 128 Cal.App.2d 273, wherein a secretary lost the answer to be filed.

The last factor to consider – prejudice – also weighs in Defendant's favor here. Vacating the dismissal to allow her to file a cross-complaint against Plaintiff will not disturb the settlement. Defendant never released any claims against Plaintiff. (Larsen Reply at ¶ 11, Exhibit A.) Plaintiff's arguments that one must show fraud or mistake affecting the validity of a settlement to rescind it find no footing here where Defendant does not seek to rescind the settlement. Plaintiff suffers no material prejudice here as he does not demonstrate any way in which he is less able to defend a proposed cross-complaint.

Defendant's motion is granted.

IN THE MATTER OF CITY OF BENICIA, A MUNICIPAL CORPORATION
Case No. CU26-05823

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

The Parties are to appear. The City of Benicia has amended the Petition to substitute a DOE defendant.

CLAUDIA GONZALEZ vs. MEYER CORPORATION
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING

The Parties are to appear to address Defendant Meyers objection to evidence, specifically, "Plaintiff cannot use her own deposition testimony in her own favor. [C.C.P. Section §2025.620]."

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlleXJTcGxIVHRXZz09>

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